

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201412547	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/18/2014 2:00 PM	Location of Incident: Intersection of Himrod St and Irving Ave	18 Mo. SOL 6/18/2016	Precinct: 83		
Date/Time CV Reported Thu, 12/18/2014 2:46 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/18/2014 2:46 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Paul Palminteri	18460	951004	083 PCT
2. POM John Essig	08667	951719	075 DET
3. POM Hugo Hugasian	10228	938681	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Essig	Abuse: PO John Essig stopped the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Paul Palminteri	Abuse: PO Paul Palminteri stopped the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Paul Palminteri	Abuse: PO Paul Palminteri frisked § 87(2)(b)	C . Substantiated
D . POM Paul Palminteri	Abuse: PO Paul Palminteri threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . POM Paul Palminteri	Abuse: PO Paul Palminteri searched § 87(2)(b)	E . Unsubstantiated
F . POM Paul Palminteri	Abuse: PO Paul Palminteri frisked an individual.	F . Substantiated
G . POM Paul Palminteri	Abuse: PO Paul Palminteri searched an individual.	G . Unsubstantiated
H . POM Paul Palminteri	Abuse: PO Paul Palminteri strip-searched an individual.	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

This complaint was reported to the CCRB by phone on December 18, 2014. At approximately 2:00 pm on December 18, 2014, § 87(2)(b) purchased soup at a local deli and sat on the stoop of a friend's home a few blocks from the deli, in front of § 87(2)(b). As he sat, an acquaintance, who he identified as either § 87(2)(b) or § 87(2)(b) § 87(2)(b), pulled up and offered § 87(2)(b) a ride. § 87(2)(b) accepted and entered the vehicle on the rear passenger's side. There was another male, who § 87(2)(b) could not identify, in the front passenger's seat. PO Paul Palminteri and PO John Essig, assigned to the 83rd Precinct Street Narcotics Enforcement Unit team, stopped the vehicle near the intersection of Himrod Street and Irving Avenue, § 87(2)(b) § 87(2)(b) (Allegations A and B). § 87(2)(b) exited the vehicle and PO Palminteri frisked him (Allegation C). PO Palminteri allegedly ordered § 87(2)(b) § 87(2)(b) to hold his hands above his head and told him he would be arrested if he lowered them (Allegation D). PO Palminteri then allegedly searched § 87(2)(b) (Allegation E). PO Palminteri ordered the front passenger to exit the vehicle, frisked him, and allegedly searched and strip-searched him (Allegations F, G, and H). Nothing illegal was recovered, and no one received a summons or was arrested.

Mediation, Civil, and Criminal Histories

- This case was deemed unsuitable for mediation § 87(2)(b) [redacted]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [redacted]

Civilian and Officer CCRB Histories:

- PO Essig has been a member of the NYPD for three years and has been a subject in one prior case with no allegations substantiated against him (02. Board Review). § 87(2)(g) [redacted]
- PO Palminteri has been a member of the NYPD for four years and has been a subject in three other cases with no allegations substantiated against him (03. Board Review). He has been the subject for one previous vehicle stop that was closed as complainant uncooperative.
- § 87(2)(b) has filed two other complaints with the CCRB (15. Board Review). § 87(2)(b) [redacted]

Potential Issues

- § 87(2)(b) could not provide contact information for either the driver of the vehicle or the individual in the front passenger's seat. Without full and accurate names, no contact information for either individual was located.
- § 87(2)(b) [redacted]

Allegations Not Pleaded

§ 87(2)(g)

Findings and Recommendations

Allegation A—Abuse of Authority: PO John Essig stopped the car in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: PO Paul Palminteri stopped the car in which § 87(2)(b) was an occupant.

It is undisputed via the balance of testimony that PO Essig and PO Palminteri stopped the vehicle in which § 87(2)(b) was riding upon receiving information from the SNEU observation post, PO Hugasian, that § 87(2)(b) might be in possession of narcotics. Each officer acknowledged being familiar with § 87(2)(b) and awareness of his narcotics history. See PO Essig (05. Board Review), PO Palminteri (06. Board Review), and PO Hugasian (07. Board Review).

PO Hugasian described the vehicle § 87(2)(b) had entered, relayed its location and direction of travel, and § 87(2)(b)'s position in the rear. PO Hugasian testified that he referred to § 87(2)(b) by name. PO Essig confirmed that § 87(2)(b) was identified by name and § 87(2)(b) also stated that the officers used his name when speaking with him.

PO Hugasian testified that he observed § 87(2)(b) in conversation with an unidentified individual. PO Hugasian used a pair of binoculars to observe § 87(2)(b)'s behavior more closely. He maintained that § 87(2)(b) removed what appeared to be a glassine envelope from his pocket and showed it to the unidentified individual for approximately five seconds. § 87(2)(b) and the individual did not make any physical contact or exchange anything. An SUV subsequently pulled up. § 87(2)(b) walked toward the vehicle and put his hand, which PO Hugasian believed still held the glassine envelope, into his pocket. PO Hugasian lost sight of the envelope. He radioed to PO Essig and PO Palminteri, who then, based on the information provided in PO Hugasian's radio communication, stopped the vehicle less than one block away.

Neither PO Essig nor PO Palminteri knew why PO Hugasian suspected § 87(2)(b) of possessing narcotics as all the officers were consistent that PO Hugasian only provided that information necessary to identify the suspected individual.

Police stops of automobiles are legal when there exists at least a reasonable suspicion that the driver or occupants of a vehicle have committed, are committing, or are about to commit a crime. *People v. Washburn*, 309 AD2d 1270 (2003) (09. Board Review). Under the fellow officer rule, officers are entitled to rely on the information received from a fellow officer, presuming them to be personally reliable. *People v. Lubrano*, 2014 NY Slip Op 3554 (13. Board Review).

§ 87(2)(g)

it is recommended that

Allegation A and **Allegation B** be closed as **exonerated**.

Allegation C—Abuse of Authority: PO Paul Palminteri frisked § 87(2)(b)

It is undisputed among PO Palminteri and § 87(2)(b) that PO Palminteri asked § 87(2)(b) to exit the vehicle and then frisked him at the rear. PO Palminteri testified that he did so in order to check for drugs or weapons. He patted down § 87(2)(b)'s pants pockets, waist, and jacket and did not feel anything suspicious. No drugs or weapons were recovered from § 87(2)(b)'s person.

When an individual has been stopped on the basis of reasonable suspicion, and in the absence of probable cause to arrest, a frisk of that individual is permissible only if the police officer reasonably suspects that the suspect is armed and dangerous. See *De Bour*, 40 N.Y.2d at 233.

PO Palminteri testified that he did not have any specific fear that § 87(2)(b) was carrying a weapon and he was not aware of § 87(2)(b) ever being in possession of a weapon during any previous stops or arrests. However, PO Palminteri stated that he frisked § 87(2)(b) for drugs or weapons. No one described § 87(2)(b) as anything other than cooperative, and PO Essig testified that individuals as a whole were cooperative and no one exhibited any behavior that gave him any cause for alarm.

§ 87(2)(g)

Therefore it is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation D—Abuse of Authority: PO Paul Palminteri threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that after frisking him, PO Palminteri told him to hold his arms above his head. He maintained that PO Palminteri told him to keep them there, and that he would be arrested if he lowered them.

PO Essig was standing on the driver's side of the vehicle and did not witness the interaction between § 87(2)(b) and PO Palminteri at the rear of the vehicle. He did not hear from PO Palminteri at any point that any of § 87(2)(b)'s behaviors at the rear of the vehicle constituted an arrestable offense. He did not hear PO Palminteri tell § 87(2)(b) that he could or was going to be arrested.

PO Hugasian had a direct line of sight from where his vehicle was parked, on Himrod Street near Knickerbocker Avenue, to where the vehicle stop occurred. From that position, and with the use of binoculars, he observed the interactions between § 87(2)(b) and PO Palminteri at the rear of the vehicle. While he was too far away to hear any conversation that took place, PO Hugasian

testified that he did not believe § 87(2)(b)'s hands were ever above his head. However, he did not specifically remember what § 87(2)(b) did with his hands.

PO Palminteri testified that he never asked § 87(2)(b) to put his hands above his head. He denied telling § 87(2)(b) that he could or would be arrested for lowering his arms, and maintained that he did not discuss arresting § 87(2)(b) at all.

§ 87(2)(g) it is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—Abuse of Authority: PO Paul Palminteri searched § 87(2)(b)

§ 87(2)(b) alleged that after the frisk, PO Palminteri unzipped § 87(2)(b)'s pants and reached into the crotch of his pants, inside the front and rear of his underwear, and made contact with his skin. He stated that his pants were not lowered all the way, but enough to search the crotch and rear areas. § 87(2)(b) acknowledged that he was wearing two layers of pajama bottoms under his denim jeans. Additionally, when nothing illegal was found on anyone in the vehicle, § 87(2)(b) alleged that PO Palminteri made him open his soup container and fish through it with his own hand to prove that there was nothing illegal inside.

PO Palminteri testified that he did not put his hands down § 87(2)(b)'s pants or search him in any manner. While he acknowledged asking § 87(2)(b) what was inside his bag, he stated that § 87(2)(b) opened the soup container without being instructed to and no search of the soup container was conducted. PO Essig maintained that he did not witness PO Palminteri's interaction with § 87(2)(b) at the rear of the vehicle and did not know whether or not PO Palminteri had reached his hand inside § 87(2)(b)'s pants. PO Hugasian testified that he did not witness PO Palminteri search § 87(2)(b).

§ 87(2)(g) it is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F—Abuse of Authority: PO Paul Palminteri frisked § 87(2)(b)

§ 87(2)(b) alleged that after he was searched and had returned to the rear passenger's seat of the vehicle, PO Palminteri asked the unidentified front passenger to exit and patted him down. § 87(2)(b) stated that the individual was visibly nervous, and when PO Palminteri asked why, the individual in the front driver's seat told him he undergone § 87(2)(b).

PO Palminteri maintained that after § 87(2)(b) returned to the rear passenger's seat of the vehicle he approached the front passenger's side door. The individual seated there, a short Hispanic male with gray hair and a slim build, was "jittery," moving his hands and feet around. However, he did not reach for anything in the vehicle or on his person and did not say anything. PO Palminteri testified that he asked the individual to exit the vehicle, and that the individual complied. The individual did not have any visible bulges on his person. PO Palminteri acknowledged that he had no reason to suspect that that individual had weapons or narcotics on his person other than what PO Palminteri perceived as his nervous demeanor. PO Palminteri led the individual to the rear of the vehicle and frisked him for drugs and weapons, patting down his pants pockets, waist, and jacket. He maintained that he did so primarily to ensure his and PO Essig's safety.

As previously noted, there was no evidence from any officer that either the driver or the front passenger were suspected of any wrongdoing as part of the initial stop. PO Essig testified that both individuals were compliant with the vehicle stop and did not exhibit any behaviors that gave him cause for alarm.

A frisk of an individual is permissible only if the police officer reasonably suspects that the suspect is armed and dangerous. See *De Bour*, 40 N.Y.2d at 233.

§ 87(2)(g)

it is therefore recommended that **Allegation F** be closed as **substantiated**.

Allegation G—Abuse of Authority: PO Paul Palminteri searched § 87(2)(b)

Allegation H—Abuse of Authority: PO Paul Palminteri strip-searched § 87(2)(b)

§ 87(2)(b) alleged that after frisking the individual who had been seated in the front passenger's seat, PO Palminteri reached into his pockets and then lowered his pants all the way to the ground, exposing his underwear and constituting a strip search. The individual was wearing two pairs of pants. PO Palminteri did not recover anything illegal during the alleged search or strip-search and allowed the passenger to return to the vehicle.

While PO Palminteri acknowledged having the individual exit the vehicle, he denied that he ever searched the individual by reaching inside his pockets or strip-searched him by lowering his pants. Neither PO Essig nor PO Hugasian corroborated either allegation.

§ 87(2)(g)

it is therefore recommended that **Allegation G** and **Allegation H** be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

§ 87(4-b), § 87(2)(g) [Redacted]
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Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date